



POLICE DEPARTMENT CITY OF NEW YORK

December 11, 2015

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Robert Martinez
Tax Registry No. 922716
75 Precinct
Disciplinary Case No. 2014-12821

Charges and Specifications:

1. Said Sergeant Robert Martinez, on or about October 16, 2013, at approximately 0358 hours, while assigned to the 75th Precinct and on duty in the vicinity of the front of [REDACTED] [REDACTED] wrongfully used force in that he punched Desmon Goins in the face and stepped on his head.

P.G. 203-11 – USE OF FORCE

Appearances:

For the CCRB-APU: Simone Manigo, Esq.

For Respondent: John D'Alessandro, Esq.

Hearing Date:

October 1, 2015

Decision:

Guilty

Trial Commissioner:

ADCT David S. Weisel

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 1, 2015. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Desmon Goins, Philmon Goins, and Monte Jackson as witnesses. Respondent called Detective Radoslaw Terepka as a witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, Respondent is found Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

The complainant in this case, Desmon Goins, was arrested at approximately 0400 hours on October 16, 2013, in front of his home at [REDACTED] a side street off [REDACTED] [REDACTED]. Respondent, the anti-crime supervisor in the 75 Precinct during the first platoon on October 16, 2013, is charged with wrongfully using force by punching Goins in the face and stepping on his head during the arrest (Tr. 85).

The accounts of the incident varied significantly. Goins testified that on the evening of October 15, 2013, he was in his house with his cousin, Monte Jackson, watching television and making music. Jackson lived there too, along with Goins's parents. They each had a few beers that evening, but did not drink anything alcoholic after 1900 hours because they had job interviews the following afternoon (Tr. 13-14, 71-72).

Around 0300 hours on October 16, 2013, Goins and Jackson stepped outside onto their front porch to smoke cigarettes. They heard an altercation and walked down the street to see

what was going on. They saw a group of people, some of whom they recognized from the neighborhood, arguing in front of a store. By the time they arrived, it seemed like the group was dispersing, so they walked over to speak to the people they knew (Tr. 12-17).

About 20 minutes later, a police car pulled up and asked one of Goins and Jackson's friends to move from where he was standing on the corner. The friend asked why, but in an effort to keep his friend calm, Goins interjected and told the officers that he was going to walk his friend home. Both Goins and Jackson walked their friend back to his house a few blocks away on [REDACTED] and then walked back to their own house (Tr. 17-19).

When Goins and Jackson arrived back at their house, they again sat in the front to smoke cigarettes before going to bed. About five minutes later, an unmarked car pulled up in front of the house and two or three officers exited. According to Goins, the officers asked both of them to stand by his father's car, which was parked on the street in front of the house, and began searching the area in front of the house with flashlights. At some point, additional officers arrived and they began to search Goins and Jackson. According to Goins, both he and Jackson were searched twice. Goins testified that both he and Jackson tried to ask the officers what was going on, but they did not explain it to him (Tr. 19-25).

The officers asked Goins and Jackson to turn around and put their hands on the vehicle belonging to Goins's father (Philmon Goins) so that they could be searched a third time. Goins refused, saying that they already had been searched twice and he was not going to allow them to search him again. As Goins continued to question why he was going to be searched again, one of the officers became agitated, told him to shut up, and pushed him into his father's car, causing a dent in the door (Tr. 26-28; CCRB Ex. 1a, photograph of car). Goins's friend, Jackson, confirmed that Goins was pushed into the car, denting it, and Philmon Goins confirmed that his car got dented (Tr. 63-64, 71).

Goins testified that the officer then began grabbing him, so he grabbed the officer back. In doing so he ripped the officer's jacket. Another officer came over and grabbed Goins and began helping the first officer bring him to the ground. At that point, a *third* officer came over from across the street and punched Goins in the face. This third officer was white and bald. Goins testified that this officer was the only bald officer on the scene. The Court notes that Respondent was white or white Hispanic and bald. This was the CCRB's method of identifying Respondent as the officer that engaged in the charged misconduct (Tr. 31-34, 37-38).

Goins testified that while he was on the ground, he was handcuffed from behind and pushed to the ground. One of the officers stomped on his face. Goins was unsure who stomped on his face but believed that it was the same officer that had punched him. As a result of being punched and stomped on, Goins suffered a busted lip, a bloody bruise on his left cheek, and a black left eye. The left side of his face was scraped from the friction of the impact on the sidewalk (Tr. 31-34; CCRB Ex. 1b-g, photographs of facial injuries and blood on the ground).

Respondent testified that around 0300 hours on October 16, 2013, he responded to a 911 call about a group fighting in the vicinity of [REDACTED] [REDACTED] [REDACTED]. When he arrived, he did not see anything happening and decided to canvass the area. A few minutes later, he saw a group of people standing on the corner of [REDACTED] [REDACTED] [REDACTED]. According to Respondent, it looked like a fight was going to break out so he called other members of his team to tell them to respond to the area. As he was on the phone with the other officers a fight did, in fact, begin. Respondent testified that one of the individuals involved in the fight was Goins and he saw punches being thrown at him. At that point, Respondent decided that it was not tactically safe to intervene because he was in plain clothes, outnumbered, and no one's life was in danger. Before backup arrived, the fighting stopped and the group dispersed. Respondent decided to try to stop some of the individuals involved in the altercation to

investigate what had caused the fighting. Shortly thereafter, Respondent received a call from the other members of his team that some of the individuals involved in the fight were at [REDACTED] [REDACTED] (Tr. 86-89).

When he arrived at [REDACTED], Respondent saw an officer on the east side of the street with one individual and another officer on the west side of the street with two other individuals (Tr. 89). As he was being informed by one of the officers that the individual on the east side of the street had a small kitchen knife on him, he heard a commotion on the other side of the street. He saw Police Officer David Pralgo¹ and Goins, whom he recognized as being part of the fight on [REDACTED], tussling with each other. By the time that Respondent got to the other side of the street, Goins was on the ground, and Respondent assisted Pralgo in handcuffing him (Tr. 91, 95).

Respondent testified that he noticed blood by Goins's mouth as he was taken to the ground, and noticed blood on the side of his face when he was brought to his feet. Goins was extremely intoxicated and combative. Respondent denied punching Goins in the face or stepping on his head (Tr. 91-92, 104, 106).

Detective Radoslaw Terepka testified at trial that around 0300 hours, Respondent called him and told him to respond to a fight in the vicinity of [REDACTED]

[REDACTED] As he arrived, he saw a crowd dispersing, and noticed three individuals walking across [REDACTED]. One of the individuals, later identified as Goins, was wearing a tank top and appeared very agitated and intoxicated. Terepka testified that he noticed Goins was bleeding from his mouth and overheard him say, "I fucked that nigger up." At one point, one of the individuals separated from the other two. Terepka exited his car, identified himself, and asked

¹ Pralgo pleaded guilty to wrongfully using force by pushing Goins into a vehicle and forfeited 8 vacation days (*see Case No. 2014-12820* [July 30, 2015]).

the individuals to stop. Terepka approached one of the individuals on one side of the street while his partner, Pralgo, approached one of the other individuals on the other side of the street. As Terepka was conducting a frisk, he heard a struggle and a ripping sound. He turned and saw Pralgo struggling with Goins. Pralgo appeared to be losing his balance, so Terepka went over to help him handcuff the individual. Respondent assisted in the handcuffing as well, but Terepka did not see him or anyone else punch or step on Goins (Tr. 110-11, 113-15, 119).

The issues to be determined in this case are whether or not Respondent wrongfully used force by punching Goins in the face and stepping on his head. The tribunal finds that the CCRB proved by a preponderance of the credible evidence that Respondent engaged in the alleged misconduct.

Resolution of this matter rests in large part on a determination of witness credibility. In analyzing credibility, this tribunal may consider such factors as demeanor, consistency of testimony, supporting or corroborating evidence, motivation, bias or prejudice, and the degree to which an account comports with common sense and human experience.

The Court credits Goins on the issue of whether he was punched and stepped on by Respondent. There were several key factors that convinced this tribunal that Goins was telling the truth when he testified about the use of force. First, Goins gave a straightforward, unembellished account of Respondent doing these actions. He gave no indication that he was punched or stepped on more than one time each. There was none of the familiar claims that, for example, the officers were beating him up for five minutes or repeatedly striking him in the head.

Second, Goins did not try to paint a particularly flattering picture of himself. He admitted that he had been drinking over the several hours before the incident, even though he had a job interview the next day. He also conceded that he went to check out a street fight right before his interaction with the officers. Nor did he minimize the acts that were disrespectful and

reflected negatively on himself, such as grabbing one of the officers and ripping his jacket. Importantly, this act would have provided the officers, including Respondent, with motive to retaliate against Goins with undue use of force.

Third, Goins produced several photographs, CCRB Exhibits 1b-g, documenting his injuries. It was not disputed that they were taken by people associated with Goins and there was no other evidence of their legitimacy. Nevertheless, the Court credits Goins's assertion that they fairly and accurately displayed his injuries. As noted *infra*, he had no motive to fabricate here, certainly no motive to start faking photographs.

The photographs showed a bloody bruise to the right side of Goins's lower lip, a blackened left eye, and a large bloody bruise to his left cheek. Goins said that the injury to his lip occurred when he was being stepped on and the injury to his cheek from the impact with the concrete. He said that the black eye was from the punch (Tr. 34). Thus, the complainant's description of the injuries was consistent with the use of force he described. The fresh blood on the sidewalk of [REDACTED] (CCRB Ex. 1f) also supports the conclusion that Goins was punched there.

Fourth, the evidence revealed no compelling motive for Goins to fabricate an accusation of serious misconduct against Respondent. There was no proof that he was contemplating any type of civil claim against the officer nor was there evidence that they had a prior acrimonious relationship.

In contrast, after closely observing Respondent and Terepka at trial, this tribunal was convinced not to credit much of their testimony concerning the use of force. Respondent and Terepka asserted that Goins's injuries happened during the fight on [REDACTED] except for the cheek bruise, which, it was implicitly surmised, occurred when the officers brought Goins to the ground. But they only actually witnessed a bloody lip after the fight, not anything about

his eye. To this tribunal, their testimony seemed carefully crafted to bolster the defense by creating a set of facts in which Goins was bleeding from his lip and cheek, but not through any police action.

Especially troubling was Terepka's description of Goins as the same individual he had seen earlier wearing a tank top crossing [REDACTED]. This was inconsistent with both Goins's own testimony that he was wearing a black hoodie, but more importantly with the arrest photograph from that morning in which Goins is wearing a black outer garment over a light-colored shirt (CCRB Ex. 1g; Tr. 15). To be sure, it is possible that Terepka simply misremembered. It also is possible that Goins was in the fight wearing only the tank top and put the hoodie sometime after the fight but before being transported to the precinct. To the Court, however, it suggested Terepka was fabricating a detail that supported the conclusion that Goins was fighting, as one might remove his coat or jacket to start throwing punches.

Accordingly, Respondent is found Guilty of using excessive force against Goins by punching his face and stepping on his head.

PENALTY RECOMMENDATIONS

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on August 31, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The CCRB requested a penalty consisting of the forfeiture of 15 vacation days. They did not, however, explain why this case should receive a harsher penalty than other similar cases. See *Case No. 2013-10851* (Feb. 27, 2015) (8-year police officer with no prior disciplinary record forfeited 10 vacation days for striking suspect in head with asp without police necessity); *Case*

No. 2013-11030 (May 28, 2014) (9-year officer with no record received 10 days for using excessive force against a person by punching and kicking the individual, and for lifting and twisting the person's handcuffs, causing pain, without police necessity). As such, the Court recommends that Respondent receive a penalty of 10 vacation days.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials

APPROVED
FEB 18 2016
WILSON
POLICE COMMISSIONER

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
SERGEANT ROBERT MARTINEZ
TAX REGISTRY NO. 922716
DISCIPLINARY CASE NO. 2014-12821

Respondent received an overall rating of 4.5 “Extremely Competent/Highly Competent” on his last three annual performance evaluations. [REDACTED]

[REDACTED]. He has received eight medals for Excellent Police Duty, 10 medals for Meritorious Police Duty, one Honorable Mention medal, and one Combat Cross.

From April 16 to November 25, 2008, Respondent was on Level I Force Monitoring as a result of having three or more CCRB complaints in one year. Beginning May 13, 2014, and continuing to the present, Respondent was again placed on Level I Force Monitoring for the same reason.

For your consideration.

David S. Weisel
Assistant Deputy Commissioner Trials